CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
FEBRUARY 24, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, February 24, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised that a request was made to amend the agenda to include the following resolutions under item 12 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SIGN AMENDMENT ONE EXTENDING THE AGREEMENT BETWEEN MIAMI-DADE COUNTY AND THE CITY OF OPA-LOCKA FOR A REIMBURSEABLE GRANT CDBG AWARD IN AN AMOUNT NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00) FOR THE CONSTRUCTION OF SEGAL PARK DRAINAGE AND SITE

IMPROVEMENTS IN A FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH SUNGARD PENTAMATION TO UPGRADE THE FINANCE PLUS AND COMMUNITY PLUS SOFTWARE, ACQUIRE ADDITIONAL SOFTWARE AND PROVIDE FOR TRAINING AT A COST OF $23,940.00 PAYABLE FROM ACCOUNT # 19-519541 AND ACCOUNT # 14-512528; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT AND AUTHORIZE THE CITY MANAGER TO OBTAIN AN INDEPENDENT OUTSIDE AUDIT OF THE HUMAN RESOURCES DEPARTMENT; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-3.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

The Mayor along with the City Commission presented a commendation and plague to Mrs. Olive Jones for her dedication and commitment in assisting the homeless during the cold spell. Additionally, a plague of appreciation was presented to Scott Miller of the Opa-locka / Hialeah Flea Market and Commissioner Barbara Jordan for their support and dedication to the quality of life of Opa-locka residents.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – February 10, 2010

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of February 10, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison, Miami-Dade County Commissioner Barbara Jordan, District 1 came forward and briefly introduced Corey Jones of the Miami-Dade County Community Action Agency (CAA).

Corey Jones of the Miami-Dade County Community Action Agency (CAA) and project manager for the Miami-Dade County / Opa-locka Beautification Program appeared before the City Commission and provided a brief overview of the program, in addition to an update. Due to the lack of participation from Opa-locka residents, he stated that the

CAA is committed to working with the City of Opa-locka to increase participation in the beautification project.

Commissioner Johnson expressed her concerns with several citizens signing up with the program and the program with the Opa-locka Community Development Corporation (CDC) is not moving. She requested that Mr. Jones provide a report on the status of those who have applied for the program.

Mr. Jones informed Commissioner Johnson that the program she is referring to is with the Opa-locka CDC; however, he is with the beautification project that does the exterior and landscaping; he has nothing to do with what's taking place with the Opa-locka CDC in terms of the home rehabilitation program. However, to that extent, he has reached out to the Opa-locka CDC to forward information on any seniors on their list who meet the criteria for the CAA program that assists seniors with home rehabilitation.

Commissioner Johnson requested that Mr. Jones work on additional marketing of the program because there are seniors that need assistance.

Vice Mayor Taylor asked for clarification on the programs available through Commissioner Jordan's Office.

Mr. Gardner stated that there are two components to the program; one being the beautification and the other rehabilitation. At this time, the rehab portion is on hold due to legal issues.

Vice Mayor Taylor stated that perhaps there's a delay in the beautification program because what the residents need is not so much outside but inside.

Mr. Jones explained that when the program was initially implemented through Commissioner Jordan, the purpose was to have the program provide a dual function of having the interior addressed. While the interior was being addressed, another program would come in and address the exterior providing the homeowner with a complete makeover. However, due to legal issues with the interior portion of the program, he kept moving forward with the exterior. At this time, they have run into the problem where clients aren't even applying to have the exterior done.

With regards to the beautification program, Vice Mayor Taylor stated that a concern she heard was in terms of how the new grass would be watered.

Mr. Jones said he shared with the homeowners that when they received their utility bills, they could then go to Community Action Agency and apply for a one-time water bill assistance.

Mayor Kelley stated that he would get with the City Manager to assist in getting the word out in terms of the beautification program.

Mr. Gardner informed the Commission of a recent meeting regarding the rehabilitation program and that program would soon continue.

Commissioner Johnson requested that Commissioner Jordan provide the city with technical support in the city's bidding process and procurement, if possible.

10. PUBLIC PRESENTATION:

1. Steven Barrett
re: Welfare of the City

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission to express his concerns relating to the lack of maintenance and upkeep of certain properties in the downtown area which creates an eyesore to the area.

2. Alvin Burke
re: Welfare of the City

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission to voice his concern relating to random drug testing for board members. Since the city has money for drug testing, he suggested that they start showing appreciation to its board members again.

10a. CITIZENS' FORUM:

1. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, came forward and made reference to a discussion at the last commission about the city's newsletter and certain individuals from the Commission whose picture was not included. He suggested that the city utilize the newsletter to list opportunities that will help the people.

He continued by saying that as a current board member, he doesn't have a problem with the drug testing; however, he is in agreement that the city needs to start having the appreciation banquet that was once held for all city board members.

He further stated that he would like to know when the city will start to work on sidewalks for Sharar Avenue.

Prior to the current City Manager's time, Mayor Kelley stated that the Public Works Department was suppose to be working on a comprehensive plan to identify sidewalks by breaking it down into sections to seek funding. Part of that was to look at some of the areas in the back that didn't have power lines, etc. to concrete those and make it easier. He directed the City Manager to follow up on this item.

2. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, came before the City Commission and stated that he too is looking for those sidewalks on Sharar Avenue.

Mayor Kelley stated that what has occurred is when people see the improvements then everybody wants them. Although that's a good thing, the city has to find the resources to get those projects done.

11. ACTION ITEMS (items from consent agenda pull list):

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SIGN AMENDMENT ONE EXTENDING THE AGREEMENT BETWEEN MIAMI-DADE COUNTY AND THE CITY OF OPA-LOCKA FOR A REIMBURSEABLE GRANT CDBG AWARD IN AN AMOUNT NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00) FOR THE CONSTRUCTION OF SEGAL PARK DRAINAGE AND SITE IMPROVEMENTS IN A FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH SUNGARD PENTAMATION TO UPGRADE THE FINANCE PLUS AND COMMUNITY PLUS SOFTWARE, ACQUIRE ADDITIONAL SOFTWARE AND PROVIDE FOR TRAINING AT A COST OF $23,940.00 PAYABLE FROM ACCOUNT # 19-519541 AND ACCOUNT # 14-512528; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT AND AUTHORIZE THE CITY MANAGER TO OBTAIN AN INDEPENDENT OUTSIDE AUDIT OF THE HUMAN RESOURCES DEPARTMENT; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CREATING A NEW SECTION (ORDINANCE NO. 86-8, ARTICLE 7, SECTION 7.5) ENTITLED TREE PROTECTION PROGRAM; SPECIFYING INTENT; DESIGNATING AUTHORITY TO SUPERVISE; ENFORCE, MODIFY AND SUPPLEMENT; PROVIDING DEFINITIONS; ESTABLISHING TREE PLANTING STANDARDS; SPECIFYING TREE PRUNING STANDARDS; PROVIDING TREE REMOVAL STANDARDS; PROHIBITING TREE ABUSE; DESCRIBING PUBLIC PROPERTY PLANTING AND MAINTENANCE

STANDARDS; APPLICABILITY TO UTILITY COMPANIES; ESTABLISHING EMERGENCY PROVISIONS; DESIGNATING ENFORCEMENT; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY, REPEALER AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on January 27, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

Commissioner Johnson asked whether this ordinance was an enhancement to the previous legislation adopted several years ago.

Manager Patterson explained that this ordinance would keep the city in line with being a Tree City USA.

Commissioner Johnson said she would be looking for the "Tree City USA" signage throughout the city.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH QUALITY WIRING FOR THE INSTALLATION OF TWENTY-SIX (26) NETWORK CONNECTIONS, NETWORK CABINETS AND EQUIPMENT IN AN AMOUNT NOT TO EXCEED FOUR THOUSAND FOUR HUNDRED AND FOUR DOLLARS AND EIGHTY EIGHT CENTS ($4,404.88); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolution.

The motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson introduced the city's new Human Resources Director and Deputy Chief of Police.

Guithele Ruiz-Nicholas, Human Resources and Adam Burden, Deputy Chief of Police for the City of Opa-locka came forward and briefly provided an overview of their past work experience.

Manager Patterson reported to the Commission that due to delays, the Sherbondy Park project was not on the agenda. He requested that the Mayor poll the Commission for a Special Meeting due to the urgency of the Sherbondy Park Project. At the special meeting, he would bring the contractors with the three lowest bids before the Commission for a presentation and would then move forward.

Commissioner Johnson expressed her concerns with the amount of money and individuals the city is allotting for car allowances because there are other departments utilizing their vehicles for city business and not being reimbursed for the mileage.

Manager Patterson informed Commissioner Johnson that the report on car allowances is in the packet provided to the Commission.

Commissioner Johnson stated that $7,200.00 for individual's car allowance is ludicrous in this day and time with the economy being the way it is. In addition to that, she read the accounts payable report provided and she is very concerned with the amount of money being reimbursed to staff. She directed the City Manager to take a look at the reimbursements.

She continued by commending staff from the City Manager's Office for the excellent job on the Community Newspaper.

She further requested that the Neighborhood Watch Meetings be continued and everyone must be notified via a calendar. In addition to that, she suggested that the format for the

meetings are revised because the city logo is not displayed. She directed the City Manager to provide the Commission with a copy of the meeting minutes as a part of the package.

Commissioner Johnson assumed that the city would be meeting with CSX.

Manager Patterson advised that a meeting was just held with CSX.

Commissioner Johnson directed the City Manager to provide the Commission with a report on the meeting held with CSX.

Vice Mayor Taylor expressed her concern regarding add on items to the commission agenda because add on items should be on an emergency basis. She asked, why aren't the agenda items ready when the main agenda is prepared? In looking at the add on resolutions, it looks as if the City Manager and/or staff had knowledge of the items all the time and all of a sudden the item is an add on to the agenda.

Manager Patterson understood what Vice Mayor Taylor stated and said he would see that those items make it on the agenda.

Commissioner Johnson asked, how many employees in the Police Department and at Town Center are CPR certified? If the City Manager didn't know then perhaps he could make sure there are CPR certified personnel for emergency purposes.

With regards to the city's municipal complex, she directed the City Manager to get with the landlord to make sure the building is in ADA compliance. She said she would like to see a handicap button at the entrance of the building to automatically open the door.

She continued by saying that several years ago the city adopted the "Go Green" and she noticed that there aren't any recycle bins in the offices. Additionally, as the city is looking at beautifying the downtown area, it is crucial to look at the city's own facilities first.

As the city's continues it progress, she directed the City Manager to make sure those items move forward.

Vice Mayor Taylor asked about the main door at Town Center One because she noticed there are two doors but only one actually opens.

Commissioner Holmes and Commissioner Johnson both advised that one of the doors is locked.

Manager Patterson stated that the entrance to Town Center One must be handicap accessible.

Further Commissioner Holmes said that he has never had a problem getting in and out of the building in his scooter; however, he agreed that some individuals may have a problem with the door.

He continued by asking for an update in terms of the demolition of the water plant and the approval from DERM.

In terms of the water plant, Mayor Kelley stated that he understood that the company had a maximum of seven weeks to demolish the water plant. He asked, has the city heard from the company in terms of the timeline?

Daniel Abia, Director of the Public Works/Building & License Departments came forward and stated that the contractor had received DERM approval in addition to the necessary permits to proceed with the demolition. The contractor is scheduled to start work on February 26, 2010.

Mayor Kelley directed the City Manager to have staff make sure the contractor complies with all requirements.

Although the City Manager didn't mention it under his report, Mayor Kelley stated that the Commission did have the meet and greet with the trash/garbage haulers. He asked that the City Manager elaborate on the delivery of the new garbage cans to the residents. Previously it was mentioned that the information would be made available to the residents; however, perhaps the City Manager could utilize the city's cable channel to get the information out.

Manager Patterson advised that the information would be on the city's cable Channel 77 as well as on the city's utility bills. The vendor had began to deliver the garbage cans but due to the rainy weather they had to stop and are scheduled to continue the following day.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the City Commission has in their package the payroll register and the cash requirements to be paid the following day. Additionally, the city is paying its bills as they become due.

In terms of the year end audit, he advised that the auditors had finished their work and the city is on schedule to receive the audit.

Commissioner Johnson requested that the Commission is provided a report of whatever bills are due between this meeting and the next meeting, with the name of the vendor, amount of money owed and the account number. This is what she had asked for and would like to receive at every commission meeting moving forward. However, the information being provided is after the bills are already paid.

Mr. Orji explained the timing difference between when the Commission meets and when the checks are paid. However, he would do the best he could to provide the information requested.

Commissioner Johnson requested that the information is provided by the next meeting.

Mr. Orji stated that the bills to be paid on February 25, 2010 are in the Commission packet.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Geller provided a report to the Commission on the recent news regarding the red light cameras in which Judge Bagley, Miami-Dade County Circuit Court struck down the Aventura Ordinance on red light cameras. The city is now in the process of finalizing its red light documents to get it up and running; but the city will need to have an additional agreement with the company to make sure if this is ultimately struck down that the city is not left holding the bag for the portion of the money going to the company. The concern is if this stands up, will the company be in a position where it would have to refund all monies from all cities that they've been collecting then the city wants some assurance that they have sufficient financial resources that it will not put them out of business. Because the appeal may take some time, the city will continue going forward with the existing plan provided that the company can assure, if it is ultimately struck down, that they will refund their portion. The city should also consider whether it would expend any of the monies collected or hold it in a reserve account.

As the City Manager and City Attorney work through this issue, Mayor Kelley suggested that any funds collected are held in a reserve account and that those funds are not spent. In addition to what the City Attorney just mentioned, he heard other arguments that it may get reduced. The legislature has some bills pending that would have an impact on this matter where the city would collect and the state would get a portion; but that would be determined in the legislative process.

Attorney Geller stated that the second reading on the Drug Testing Ordinance is not before the Commission because he met with Commissioner Johnson and she had some very good suggestions. The ordinance is going to be revised and brought back before the Commission at the next meeting with the revisions.

With regards to the request relating to enforcement, he spoke with the City Manager about contractors needing permits and making sure they comply. He doesn't believe the city needs additional legislation because it is an enforcement issue. The city is prepared to crack down and the City Manager has staff out, and if someone is found not acting in accordance with the law which requires pulling these permits, the city will take action.

He further stated that the city has obtained a hearing date in the GFM issue on their motion to dismiss and he is moving forward on that. After preliminary discussions, they will be looking at the possibility of mediation on both cases involving the Flea Market. There's a case where the Flea Market is suing the city and a case where the city is suing the Flea Market; however, one case has nothing to do with the other but the parties are the same. The Flea Market is not willing particularly to compromise on what is owed to the city; however, mediation is always involved with settlement and some compromise does come out. As previously indicated, once he has a date for the mediation, he would be scheduling an executive session on both of those issues to get guidance from the Commission.

Attorney Geller mentioned to the Commission that he'd received a letter from an attorney representing the former director of Planning, Alfonzo Tate who has a claim against the city. He said he would look into the issue but as it stands he doesn't believe there's any valid claim.

He continued to report that the city has been in touch with both unions and he had a meeting scheduled with the AFSCME representatives; however, that meeting was cancelled and will be rescheduled. Incidentally this goes back to the issue with the drug testing because whatever the city does must be done with both unions in terms of the contracts. With AFSCME, he said he believes the city is in a pretty good place to wrap it up.

As it relates to the PBA issue, he reported that there was a very productive meeting and the issue at this point is dollars. The city has told them what they would like to do and recently received some numbers back from Finance as to what the cost would be. He advised that he would likely need an executive session with the Commission to discuss this issue because the dollars are significant.

Finally, he stated that he had been conducting an investigation into retirement life & health benefits for retired commissioners. He said he'd spoke to the city's insurance represented and they would be speaking further with the City Manager. He said he is moving forward on this issue to look at what the cost would be and what kind of benefits can be continued.

Vice Mayor Taylor asked, in the negotiations with the PBA, does the city negotiate certain level of officers or across the board?

Attorney Geller stated that the principal concern raised with the PBA and they seemed really to like was to raise minimum salary. The minimum salary is the number one problem; but when the minimum salary is raised, the issue becomes if somebody has been with the city for over one year then that individual can't be making the same as a starting officer. Therefore, there needs to be some increment above the new minimum for one year, two year and three year. The city is not looking at across the board at all because if somebody is making $33,000.00 and somebody's making $68,000.00 the difference if you take a percentage may not mean very much to those people at the

bottom run but it's a whole lot more for the people at the top. The theory that the City Manager and the Chief has put out is that they want to make sure the good young officers remain with the city.

Commissioner Johnson directed that the City Attorney get with her possibly on Monday, March 1, 2010 or Tuesday, March 2, 2010 to wrap up the educational compact and have it available to the Commission for review prior to the next regular commission meeting.

Attorney Geller stated that the revisions were completed and is ready to go. He said he would provide the revised draft to Commissioner Johnson the following day.

Commissioner Johnson asked Attorney Geller whether he had the opportunity to get with the former City Attorney regarding the charter revisions the Commission was working on.

Attorney Geller said he did speak with the former City Attorney and she was going to try to find what they had and forward it to him.

Commissioner Johnson informed Attorney Geller of another item the city was working on which he may need to follow up dealing with the police officers who received a sign on bonus and were to remain with the city for a certain time period but ended resigning immediately. The city was looking for the opportunity to retrieve some of the monies. She directed Attorney Geller to follow up with the former city attorney on this issue.

She continued by saying that she received many complaints relating to businesses who are not in ADA compliance in terms of parking. The city must first be in compliance and then make sure the businesses are in compliance in accordance with American with Disabilities Act.

Lastly, she directed the City Attorney and the City Manager to find out the emergency plan for emergencies at the Opa-locka Executive Airport.

Mayor Kelley directed the City Attorney in working with the City Manager to bring back the work initiative program for residents to go after those liens and foreclosed properties so that the money is recouped and put back in that line item to keep citizens working. In addition to those properties identified as foreclosures, the city can attempt to obtain those properties to rehabilitate and offer homeownership to citizens. He requested that Attorney Geller provide a written update to the above items by the next meeting.

18. CITY CLERK'S REPORT:

Clerk Irby read a "thank you" note from Ms. Johnnie Mae Banks-Dawkins thanking Mayor Joseph L. Kelley and the City of Opa-locka Police Department for the escort services provided for her late husband Mr. Benjamin Dawkins, Jr.

Commissioner Johnson directed the City Clerk to get with the City Manager to make sure each city department has a first aid kit.

Mayor Kelley commended the City Clerk and her staff for an excellent job done with the Census in terms of the promotional activities.

19. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor thanked Chief Cason for allowing the Security Protection Unit consisting of Captain Galindo, Corporal Lazier and Major Barrett for their presentation to the African American Council of Christian Clergy.

She continued by thanking Choice Environmental, Inc. for the trash can provided with the help of the Public Works Department and for working to assist the seniors with their trash cans.

Commissioner Johnson thanked staff in the Department of Parks & Recreation, Office of Community Services, City Clerk's Office and the Media Department for their assistance in the Youth Prevention Summit on February 20, 2010. As a result, the county has extended an invitation to participate at the Teen Court Summit on May 11, 2010.

She continued by reporting that she was the keynote speaker on February 12, 2010 for the graduation for Miami Job Corps and the speaker during Black History Month for the Department of Homeland Security. In addition to that, she was asked by the University of Miami Pediatric Mobile Unit to help promote the pediatric mobile unit which is an opportunity for the residents to received free medical services. She directed the City Clerk to assist in promoting the Pediatric Mobile Unit.

She further thanked Mayor Kelley for nominating her to the Miami-Dade County League of Cities Board of Directors which is an opportunity for her to represent the city. Also, she said she would work with the Office of Community Services (OCS) and CET on the Neighborhood Watch to provide a suggestive format.

As a representative for District 1, Community Action Agency (CAA) Board of Directors, Commissioner Johnson announced that applications are now available for Community Based Organizations looking for free meals for their summer program.

Commissioner Tydus reported that she attended Commissioner Holmes birthday celebration and Commissioner Johnson's Youth Violence Prevention Summit and out of that she was asked by one of Miami-Dade County agencies to be a part of the Michelle Obama Youth Obesity Program. Also, she attended the Miami-Dade County League of Cities Installation Gala in which she was very proud to be a part of Opa-locka in that the city is represented in the League very well by the Mayor and she witnessed Commissioner Johnson being acknowledged as one of the board members.

Commissioner Holmes welcomed the new Human Resources Director and Deputy Chief of Police to the City of Opa-locka. He thanked everyone involved in the planning of his Birthday Party and those who attended as well on February 17, 2010.

Mayor Kelley reported his attendance at both Crime Watch Meetings; the East Side and West Side. He directed the City Attorney to get with the City Clerk to prepare a general notice that any two or more commissioners may be in attendance at any given Crime Watch Meeting for posting.

He continued by saying that he moved up a notch on the Executive Board of the Miami-Dade County League of Cities and he is very proud to represent the city.

He further stated that he attended the Literacy Kick-Off Event with State Farm and Youth Co-op; hosted the monthly Faith Based Meeting on Tuesday, February 23, 2010 which they are working on a prayer service of support for the people of Haiti and attended Miami-Dade County's Mayor Carlos Alvarez State of the County Address.

Mayor Kelley commended Christine Gordon and Shawn Williams for the Community Newspaper and all that they do.

20. OFFICIAL BOARD APPOINTMENTS:

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to re-appoint Dr. Edward Smith to the Nuisance Abatement Board.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

At the last commission meeting, Vice Mayor Taylor stated that she indicated to the Commission she would like to get the parents of the Parks & Recreation to volunteer on the Community Relations, Recreation & Activities Advisory Board.

Commissioner Tydus stated that she had two citizens who expressed their desire to serve on the Community Relations, Recreation & Activities Advisory Board. She said one is a re-appointment and the other is a new appointment. These individuals have requested that the Commission consider them and they would follow through with the application. The citizens are Jannie Russell and Jackie Fogarty.

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to re-appoint Jannie Russell and appoint Jackie Fogarty to the Community Relations, Recreation & Activities Advisory Board.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 8:31 p.m.

ATTEST:

MAYOR

CITY CLERK